5524401

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

SECOND AMENDMENT TO DECLARATION

This Amendment is made this 3 day of March, 1989, by Summerhill 2 Development Limited Partnership, a Minnesota limited partnership (the "Declarant"), pursuant to the provisions of Minnesota Statutes Chapter 515A, known as the Uniform Condominium Act (referred to herein as the "Act"), and specifically pursuant to Section 515A.2-111 thereof.

WHEREAS, the Declaration of SummerHill Condominium (referred to herein as the "Declaration") has been filed in the office of the Hennepin County Recorder as Document No. 4711115, and a First Amendment to Declaration has been filed in said office as Document No. 4934519, and,

WHEREAS, the Declaration provides, in Article III, Section 2, for adding to the condominium the Additional Real Estate defined in the Declaration, and grants to Declarant the authority to add said property, all in accordance with the Act, and,

WHEREAS, Declarant is the assignee of all special declarant rights with respect to the condominium property by a Transfer of Special Declarant Rights filed as Document No. 5258165 in the office of the Hennepin County Recorder, and,

WHEREAS, Declarant desires to add to the Condominium that part of the Additional Real Estate legally described as follows:

> Lot 2, Block 1, Northwestern Financial Center 4th Addition, according to the plat thereof on file and of record in the office of the Hennepin County Recorder

as shown on the Second Supplemental Plat which is a part of this Amendment, which Additional Real Estate includes 26 additional Residential Units and 32 additional Garage Units, and their appurtenant Limited Common Elements as described herein, and,

WHEREAS, attached hereto as Exhibits C and D are Affidavits of Service, showing that notice of this Amendment has been given to the Association and the occupants of the condominium units, in compliance with Section 515A.2-111(b) of the Act.

NOW THEREFORE, the undersigned hereby enacts the following Amendment to the Declaration, in accordance with the requirements of the Declaration and the Act, for the purpose of subjecting the Additional Real Estate described above to the provisions of the Act as a part of SummerHill Condominium, hereby declaring that said Additional Real Estate shall be held, sold, conveyed and occupied subject to the covenants, restrictions, easements,

charges and liens provided for in the Declaration and this Amendment, all of which shall be binding upon all persons having or hereafter acquiring any right, title or interest therein, including their heirs, personal representatives, grantees, successors and assigns.

IDENTIFICATION OF UNITS

Article II, Section 1 of the Declaration shall be amended to read as follows:

> "1. There are 174 Units in the condominium, consisting of 78 Residential Units and 96 Garage Units, each of which constitutes a separate parcel of real estate. The identifying numbers of the Units are set forth on Exhibit B, and the identifying numbers and location of the Units are as shown on the Condominium Plat and Supplemental Condominium Plats (formerly referred to as Floor Plans and Supplemental Floor Plans under the Act) which are a part of the Declaration and Amendments thereto."

REALLOCATION OF VOTING RIGHTS, COMMON EXPENSE OBLIGATIONS AND COMMON ELEMENT INTERESTS

Voting rights, Common Expense obligations and undivided interests in the Common Elements shall be reallocated among all Units created by the Declaration and the Amendments thereto in accordance with the formulas set forth in Article IV of the Declaration. The identifying number of each Unit created on the Additional Real Estate is set forth on Exhibit B attached hereto. Exhibit B to the Declaration, as amended, shall be amended and replaced by Exhibit B attached hereto. All references to Exhibit B in the Declaration, as amended, shall mean and refer to Exhibit B attached hereto.

DESCRIPTION OF LIMITED COMMON ELEMENTS

The Limited Common Elements created in the Additional Real Estate added by this Amendment include those items contained in said Additional Real Estate which fall within the descriptions of Limited Common Elements contained in Articles II and V of the Declaration, or which are labeled as such on the Second Supplemental Condominium Plat (formerly referred to as Supplemental Floor Plans under the Act) filed with this Amendment. Said Limited Common Elements are allocated among the Units created in said Additional Real Estate pursuant to the allocation provisions contained in Article V, Section 2 of the Declaration.

LEGAL DESCRIPTIONS

Exhibit A containing the legal description of the Property shall be amended and replaced by Exhibit A attached hereto. All references to Exhibit A in the Declaration, as amended, shall

mean and refer to Exhibit A attached hereto. Exhibit C to the Declaration, as amended, is cancelled in its entirety.

APPLICABILITY AND BINDING EFFECT

Except as specifically modified by this Amendment, the Declaration, as amended, shall remain in full force and effect, and all of the rights, benefits, restrictions and obligations conferred by the Declaration, as amended, shall apply to the Additional Real Estate added hereby and all Units created therein. Unless otherwise specifically set forth herein, all words and terms used in this Amendment shall have the same meaning set forth in the Declaration.

IN WITNESS WHEREOF, Declarant has executed this instrument the day and year first set forth above.

SUMMERHILL 2 DEVELOPMENT LIMITED PARTNERSHIP, a Minnesota limited partnership

By: Summerhill 2 Development Corporation, a General Partner

By: Peter M. Boostalis
PETER M. BOOSTALIS
Its: President

STATE OF MINNESOTA)
Anoka **) SS**
COUNTY OF ~~HENNEPIN~~)

The foregoing instrument was acknowledged before me this 3 day of March, 1989, by Peter M. Boostalis the President of Summerhill 2 Development Corporation, a general partner of Summerhill 2 Development Limited Partnership, a Minnesota limited partnership, on behalf of the partnership.

James P. Akin
Notary Public

James P. Akin
Notary Public-Minnesota
Anoka County
My Comm. Exp 12-2-94

DRAFTED BY:

David B. Eide
FROMMELT & EIDE, LTD.
580 International Centre
900 Second Avenue South
Minneapolis, Minnesota 55402
(612) 332-2200

CONSENT OF MORTGAGEE

Midwest Federal Savings & Loan Association of Minneapolis, a corporation under the laws of the United States, the holder of an interest as security for an obligation (a mortgage) in the Additional Real Estate being added to SummerHill Condominium by this Second Amendment to Declaration, hereby consents to said Second Amendment to Declaration. As mortgagee of said Additional Real Estate, Midwest Federal Savings & Loan Association does not intent that the lien of its mortgage be extended to the previously existing condominium units which are not a part of said Additional Real Estate and which are not already subject to its mortgage.

MIDWEST FEDERAL SAVINGS & LOAN ASSOCIATION OF MINNEAPOLIS, a United States corporation

BY: Christopher K. Hansen

Title: Vice President

BY: James J. Entgelmann

Title: Vice President

STATE OF MINNESOTA)
) ss.
COUNTY OF Hennepin)

The foregoing instrument was acknowledged before me this 12th day of April, 1989, by Christopher K. Hansen, James J. Entgelmann the Vice Presidents of Midwest Federal Savings & Loan Association of Minneapolis, a United States corporation, on behalf of the corporation.

Myrle J. Logs
Notary Public

MYRLE J. LOGS
NOTARY PUBLIC - MINNESOTA
HENNEPIN COUNTY
My Commission Expires June 6, 1991

1381J

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT A TO SECOND AMENDMENT TO DECLARATION

LEGAL DESCRIPTION OF PROPERTY

Lot 1, Block 1, Northwestern Financial Center 3rd Addition, and Lots 1 and 2, Block 1, Northwestern Financial Center 4th Addition, according to the plat thereof on file and of record in the office of the County Recorder, in and for Hennepin County, Minnesota.

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT B TO SECOND AMENDMENT TO DECLARATION

SCHEDULE OF UNITS AND ALLOCATION OF COMMON ELEMENT INTERESTS, VOTES AND COMMON EXPENSE LIABILITIES

RESIDENTIAL UNITS:

Unit Number	Allocation Expressed as a Percentage	Designated Storage Area
Building A 8007 Xerxes Avenue South		
A101	1.2540	AS1
A102	1.2540	AS2
A103	1.2796	AS7
A104	1.2540	AS4
A105	.9030	AS5
A106	.9030	AS6
A201	1.2540	AS3
A202	1.2540	AS8
A203	1.0730	AS9
A204	1.0730	AS10
A205	1.2540	AS11
A206	.9030	AS12
A207	.9030	AS13
Building B 8013 Xerxes Avenue South		
B101	1.2540	BS1
B102	1.2540	BS2
B103	1.2796	BS7
B104	1.2540	BS4
B105	.9030	BS5
B106	.9030	BS6
B201	1.2540	BS3
B202	1.2540	BS8
B203	1.0730	BS9
B204	1.0730	BS10
B205	1.2540	BS11
B206	.9030	BS12
B207	.9030	BS13

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT B TO SECOND AMENDMENT TO DECLARATION (Continued)

SCHEDULE OF UNITS AND ALLOCATION OF COMMON ELEMENT INTERESTS, VOTES AND COMMON EXPENSE LIABILITIES

RESIDENTIAL UNITS (continued):

Unit Number	Allocation Expressed as a Percentage	Designated Storage Area
Building C 8019 Xerxes Avenue South		
101	1.3010	CS6
102	1.2430	CS8
103	1.2540	CS7
104	1.2430	CS4
105	.9470	CS13
106	.9470	CS5
201	1.3010	CS10
202	1.2430	CS3
203	1.2796	CS9
204	1.2796	CS2
205	1.2430	CS12
206	.9470	CS1
207	.9470	CS11
Building D 8025 Xerxes Avenue South		
111	1.3010	DS6
112	1.2430	DS8
113	1.2540	DS7
114	1.2430	DS4
115	.9470	DS11
116	.9470	DS5
211	1.3010	DS10
212	1.2430	DS3
213	1.2796	DS9
214	1.2796	DS12
215	1.2430	DS1
216	.9470	DS14
217	.9470	DS2

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT B TO SECOND AMENDMENT TO DECLARATION (Continued)

SCHEDULE OF UNITS AND ALLOCATION OF COMMON ELEMENT INTERESTS, VOTES AND COMMON EXPENSE LIABILITIES

RESIDENTIAL UNITS (continued):

Unit Number	Allocation Expressed as a Percentage	Designated Storage Area
Building E 8031 Xerxes Avenue South		
121	1.3010	ES6
122	1.2430	ES8
123	1.2540	ES7
124	1.2430	ES4
125	.9470	ES11
126	.9470	ES5
221	1.3010	ES10
222	1.2430	ES3
223	1.2796	ES9
224	1.2796	ES12
225	1.2430	ES1
226	.9470	ES14
227	.9470	ES2
Building F 8037 Xerxes Avenue South		
131	1.3010	FS6
132	1.2430	FS8
133	1.2540	FS7
134	1.2430	FS4
135	.9470	FS13
136	.9470	FS5
231	1.3010	FS10
232	1.2430	FS3
233	1.2796	FS9
234	1.2796	FS2
235	1.2430	FS12
236	.9470	FS1
237	.9470	FS11

KEY: A letter preceding the Unit Number or storage Area designates the Building in which it is located.

GARAGE UNITS:

There are sixteen (16) Garage Units in each Building (Buildings A, B, C, D, E and F), for a total of 96 Garage Units. Garage Units in each Building are numbered with the numerals 1 through 16 preceded by the letter G and the letter identifying the Building.

1. Each Garage Unit in Buildings A and B is approximately 120 square feet in area, and the percentage allocation of Common Element Interests, Votes and Common Expense Liabilities is .154%.

2. Each Garage Unit in Buildings C, D, E and F is approximately 80 square feet in area, and the percentage allocation of Common Element Interests, Votes and Common Expense Liabilities is .082%.

Total -	**Residential Units**	89.824%
Total -	**Garage Units**	10.176%
Total -	**All Units**	100.000%

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT C TO SECOND AMENDMENT TO DECLARATION

AFFIDAVIT OF SERVICE ON ASSOCIATION

STATE OF MINNESOTA)
) SS
COUNTY OF Anoka)

Peter M. Boosalis, of the City of Edina, County of Hennepin, in the State of Minnesota, being duly sworn, on oath says: that on the 3rd day of March, 198 9, he/~~she~~ served a Notice of Intention to Add Additional Real Estate, containing the information required by Section 515A.2-111(b)(1) of the Uniform Condominium Act, upon SummerHill Condominium Association, Inc. therein named, personally at 8025 Xerxes Avenue So., #212, City of Bloomington, County of Hennepin, State of Minnesota, by handing to and leaving with Warren Winterfeldt, an officer of said corporation duly authorized to accept service, a true and correct copy thereof, pursuant to the requirements of the aforementioned statute.

Peter M. Boosalis

Subscribed and sworn to before me this 3rd day of March, 198 9.

Notary Public

Jamos P. Akin
Notary Public-Minnesota
Anoka County
My Comm. Exp 12-2-94

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT D TO SECOND AMENDMENT TO DECLARATION

AFFIDAVIT OF SERVICE ON OCCUPANTS

STATE OF MINNESOTA)
) SS
COUNTY OF Anoka)

Peter M. Bousalis of the City of Edina, County of Hennepin in the State of Minnesota, being duly sworn, says that on the 3rd day of March, 1989, he/~~she~~ served a Notice of Intention to Add Additional Real Estate, containing the information required by Section 515A.2-111(b)(2) of the Uniform Condominium Act, on the occupants of each Unit in SummerHill Condominium as of the 3rd day of March, 1989, by mailing to them a true copy thereof, enclosed in an envelope, postage prepaid, and by depositing same in the post office at St. Louis Park, Minnesota directed to Occupant Entitled to Legal Notice at the addresses of the respective condominium Units occupied by them, pursuant to the requirements of the aforementioned statute.

Peter M. Bousalis

Subscribed and sworn to before me this 3rd day of March, 1989.

Notary Public

James P. Akin
Notary Public-Minnesota
Anoka County
My Comm. Exp. 10-2-94

FILE NO. 1 OFFICIAL PLAT

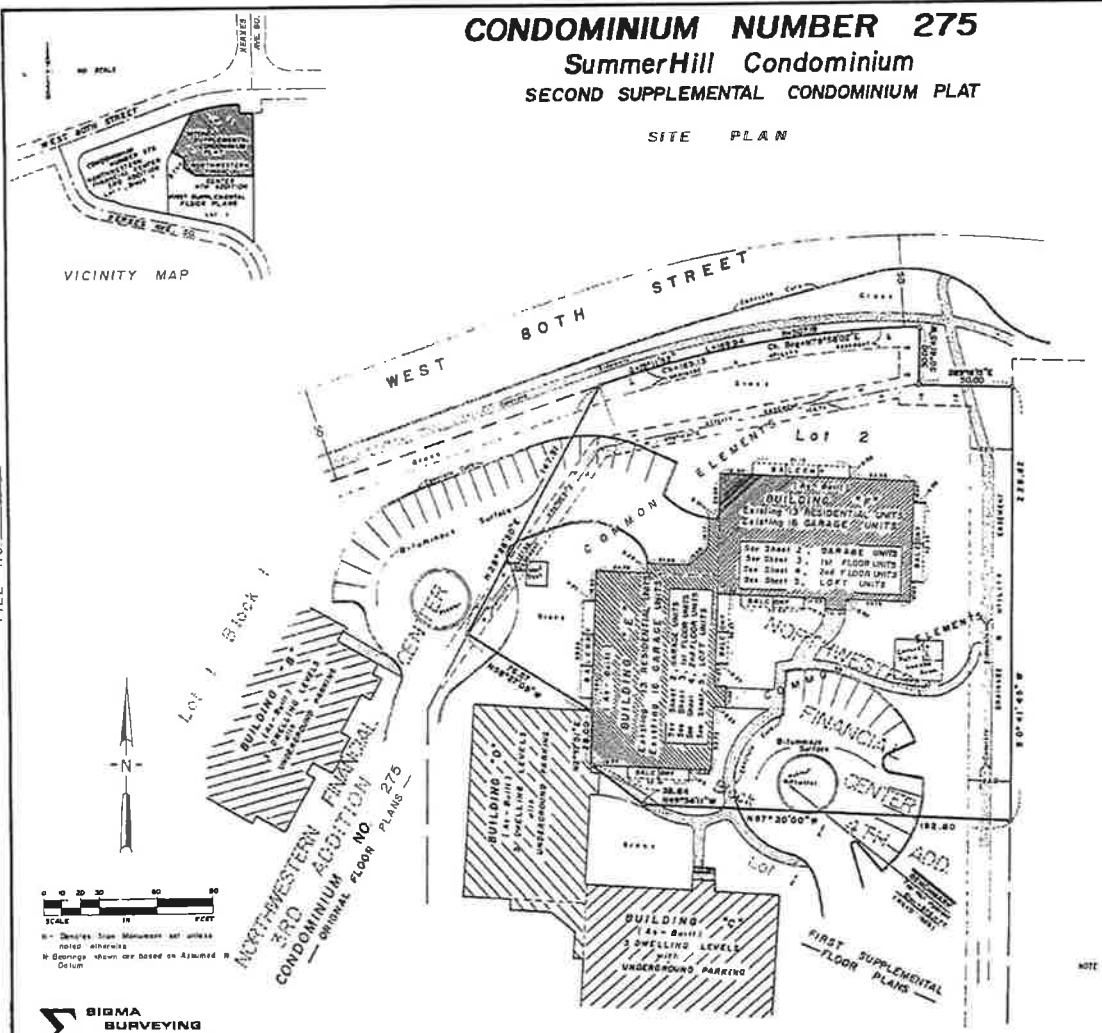
CONDOMINIUM NUMBER 275

SummerHill Condominium

SECOND SUPPLEMENTAL CONDOMINIUM PLAT

SITE PLAN

THIS SECOND SUPPLEMENTAL CONDOMINIUM PLAT HAS BEEN RECORDED AS PART OF THE DECLARATION FILED AS DOCUMENT NO. 5524401 ON THE 13th DAY OF APRIL A.D., 1989.
HENNEPIN COUNTY RECORDER



VICINITY MAP

FILE NO. 1

SCALE 0 10 20 30 60 90 IN FEET

B= Denotes Sign Monument set unless noted otherwise
N= Bearings shown are based on Assumed N Datum

SIGMA SURVEYING SERVICES

The undersigned, being first duly sworn under oath, certifies and deposes that this SECOND SUPPLEMENTAL CONDOMINIUM PLAT of CONDOMINIUM NUMBER 275, SummerHill Condominium being located on the following described lands

Lot 2 Block 1 NORTHWESTERN FINANCIAL CENTER 4TH ADDITION, according to the to the recorded plat thereof, Hennepin County, Minnesota

and that this Condominium Plat fully and accurately depicts all information required by Minnesota Statutes Section 515A.2-110

Dated this 6th day of April, 1989

Wayne D. Cordes
Registered Professional Land Surveyor
Minnesota Registration No. 14175

STATE OF MINNESOTA
COUNTY OF Scott } SS

The foregoing instrument was acknowledged before me this 6th day of April 1989 by Wayne D. Cordes, a Registered Professional Land Surveyor

BRENDA K. ANDERSON NOTARY PUBLIC-MINNESOTA SCOTT COUNTY My Comm. Expires Dec. 19, 1991

Brenda K. Anderson
Notary Public, Scott County, Minnesota
My Commission Expires 12-19-91

James Hanson a Registered Professional Architect for the State of Minnesota pursuant to Minnesota Statutes Section 515.2-101(b) does hereby certify that all structural and mechanical systems serving more than one unit of all buildings containing or comprising any units hereby created are substantially completed consistent with the SECOND SUPPLEMENTAL CONDOMINIUM PLAT of CONDOMINIUM NUMBER 275 SummerHill Condominium

Dated this 7th day of APRIL, 1989

James Hanson
Registered Professional Architect
Minnesota Registration No. 8855

STATE OF MINNESOTA
COUNTY OF Hennepin } SS

The foregoing instrument was acknowledged before me this 7th day of April 1989, by James Hanson, a Registered Professional Architect

Patricia Schweback
Notary Public, Hennepin County, Minnesota
My Commission Expires 7-20-91

PATRICIA SCHWEBACH NOTARY PUBLIC-MINNESOTA HENNEPIN COUNTY My Commission Expires Jul. 20, 1991

NOTE Easements shown hereon are per plat of NORTHWESTERN FINACIAL CENTER 4TH ADDITION

36X

FILE NO. 141 OFFICIAL PLAT

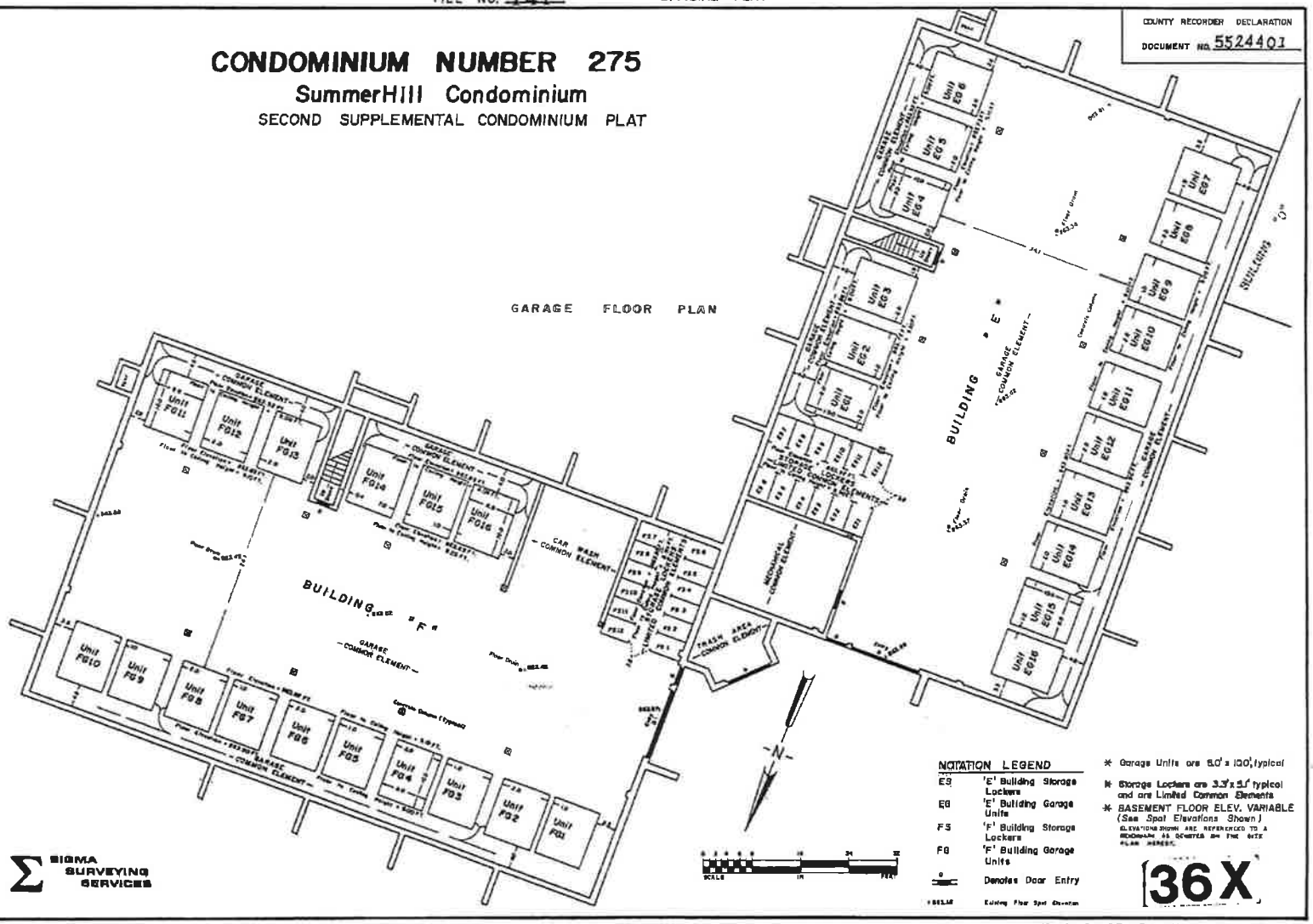
COUNTY RECORDER DECLARATION
DOCUMENT NO. 5524401

CONDOMINIUM NUMBER 275

SummerHill Condominium

SECOND SUPPLEMENTAL CONDOMINIUM PLAT

GARAGE FLOOR PLAN



NOTATION LEGEND

ES	'E' Building Storage Lockers
EG	'E' Building Garage Units
FS	'F' Building Storage Lockers
FG	'F' Building Garage Units
	Denotes Door Entry
+863.48	Existing Floor Spot Elevation

* Garage Units are 8.0' x 18.0', typical
* Storage Lockers are 3.3' x 5.1' typical and are Limited Common Elements
* BASEMENT FLOOR ELEV. VARIABLE (See Spot Elevations Shown)
ELEVATIONS SHOWN ARE REFERENCED TO A BENCHMARK AS DENOTED ON THE SITE PLAN HEREOF.

SIGMA SURVEYING SERVICES

36X

FILE NO. 141

SHEET 2 OF 5 SHEETS

FILE NO. 141 OFFICIAL PLAT

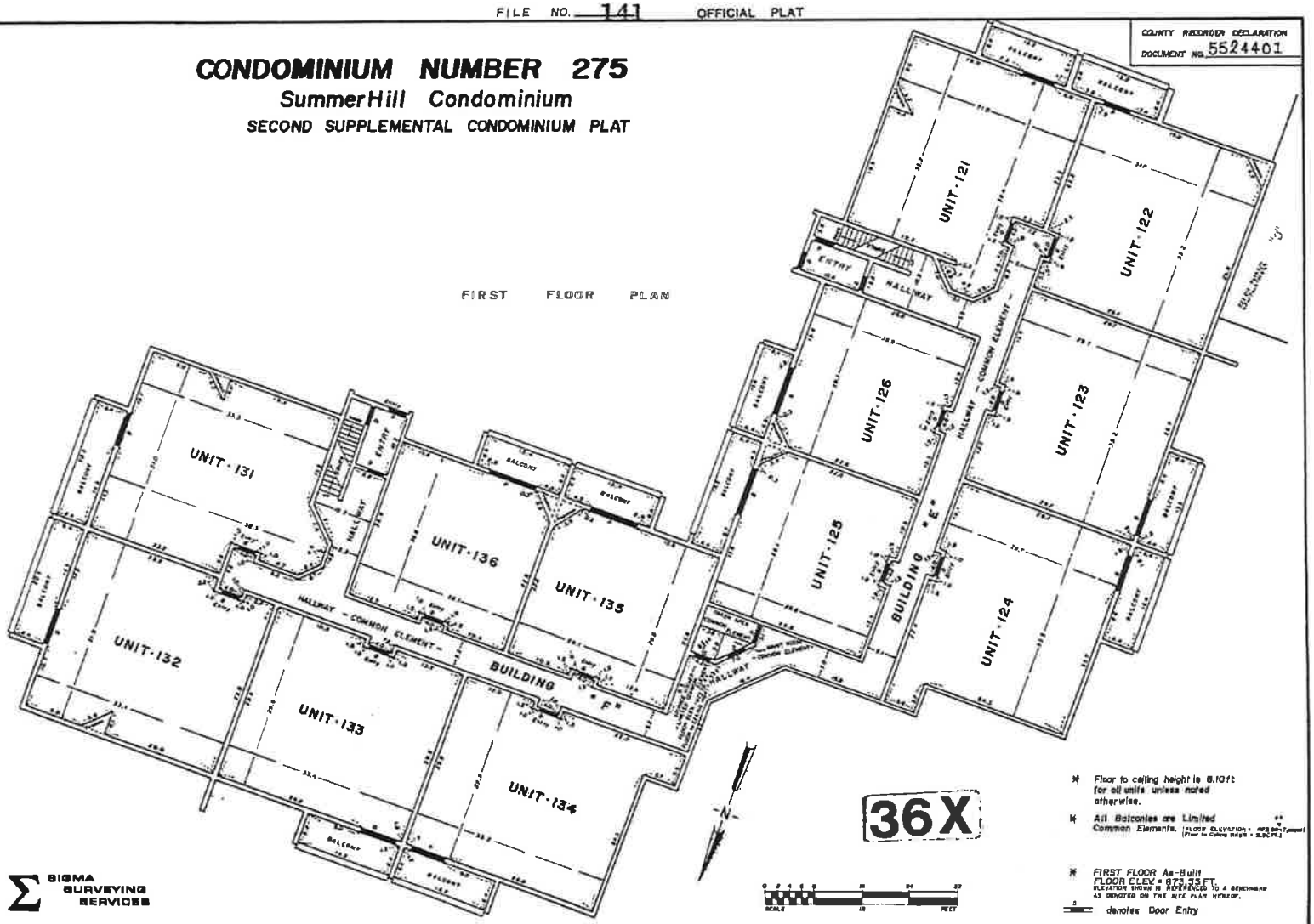
COUNTY RECORDER DECLARATION
DOCUMENT NO. 5524401

CONDOMINIUM NUMBER 275

SummerHill Condominium

SECOND SUPPLEMENTAL CONDOMINIUM PLAT

FIRST FLOOR PLAN



* Floor to ceiling height is 8.10 ft for all units unless noted otherwise.

* All Balconies are Limited Common Elements.

* FIRST FLOOR As-Built FLOOR ELEV = 673.33 FT. ELEVATION SHOWN IS REFERENCED TO A BENCHMARK AS DENOTED ON THE SITE PLAN HEREOF.

denotes Door Entry

SIGMA SURVEYING SERVICES

SHEET 3 OF 5 SHEETS

FILE NO. 141

FILE NO. 141 OFFICIAL PLAT

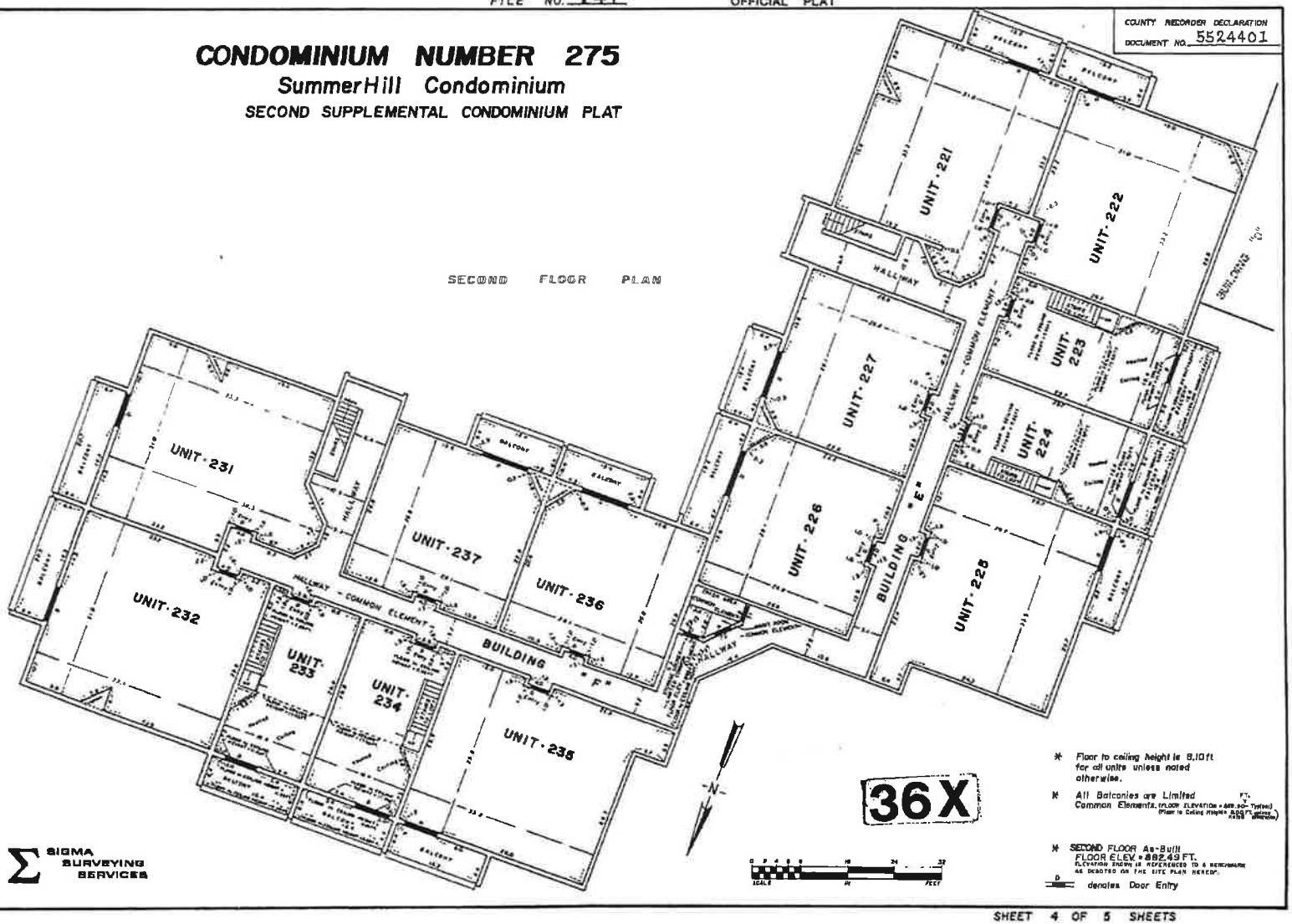
COUNTY RECORDER DECLARATION
DOCUMENT NO. 5524401

CONDOMINIUM NUMBER 275

SummerHill Condominium

SECOND SUPPLEMENTAL CONDOMINIUM PLAT

SECOND FLOOR PLAN


UNIT 221
UNIT 222
UNIT 223
UNIT 224
UNIT 225
UNIT 226
UNIT 227
UNIT 231
UNIT 232
UNIT 233
UNIT 234
UNIT 235
UNIT 236
UNIT 237
HALLWAY
HALLWAY - COMMON ELEMENT
BUILDING "E"
BUILDING "F"
BALCONY
BALCONY
BALCONY

FILE NO. 141 OFFICIAL PLAT

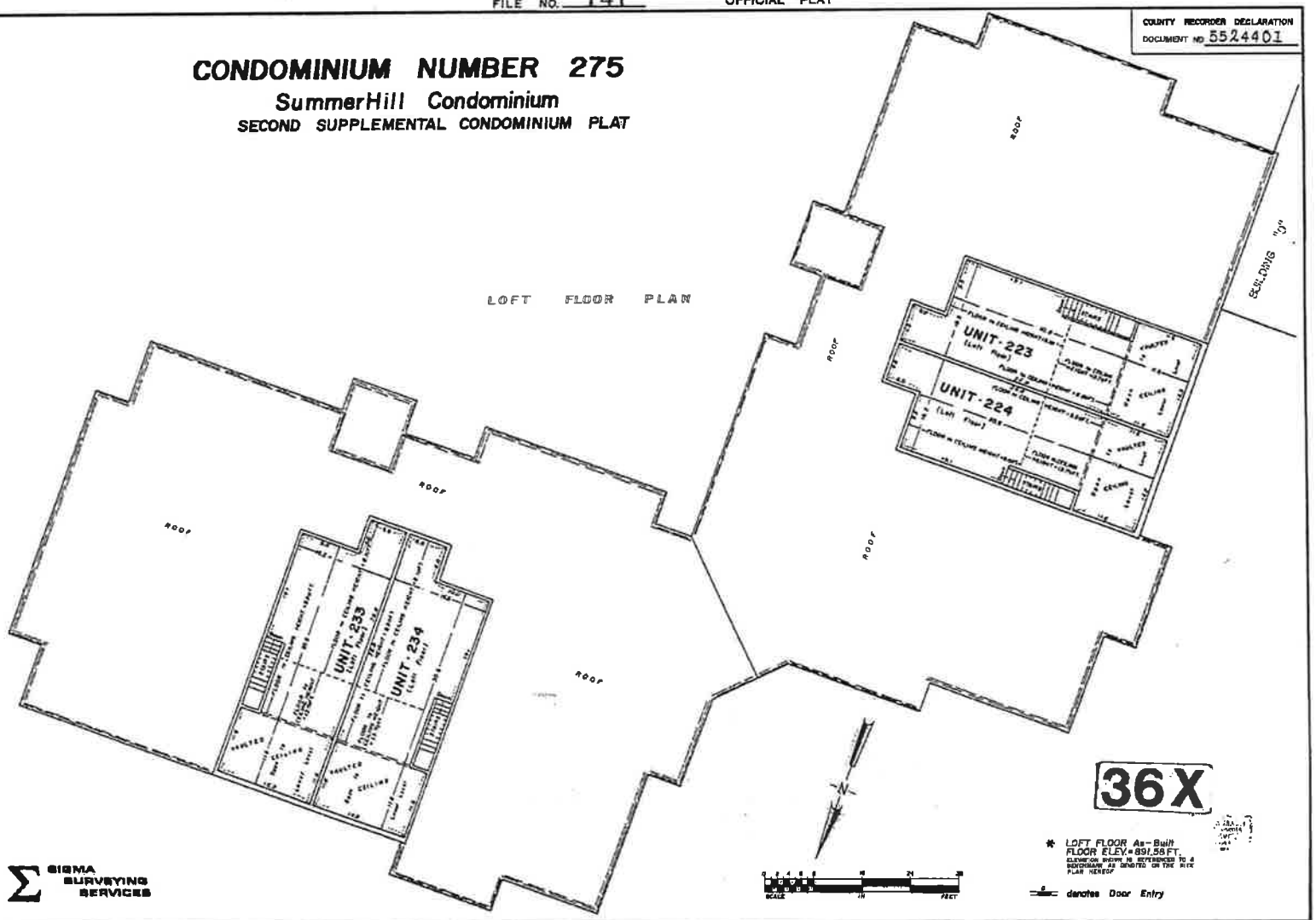
COUNTY RECORDER DECLARATION
DOCUMENT NO 5524401

CONDOMINIUM NUMBER 275

SummerHill Condominium

SECOND SUPPLEMENTAL CONDOMINIUM PLAT

LOFT FLOOR PLAN



36X

* LOFT FLOOR As-Built
FLOOR ELEV.=891.58FT.
ELEVATION SHOWN IS REFERENCED TO A BENCHMARK AS DENOTED ON THE SITE PLAN HEREOF

denotes Door Entry

SIGMA SURVEYING SERVICES

FILE NO. 141

SHEET 5 OF 5 SHEETS

SC.

5524401

13APR8915:32 C5524401 DOC $41.00

OFFICE OF COUNTY RECORDER
HENNEPIN COUNTY, MINNESOTA

CERTIFIED FILED AND OR
RECORDED ON

89 APR 13 PM 3: 32

AS DOCUMENT NO. 5524401

R. Von Cochran CO. RECORDER

M Kirsch DEPUTY

Rec. $11.00
Plat. 30.00
41.00

Box 491

5524401

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

SECOND AMENDMENT TO DECLARATION

This Amendment is made this 3 day of March, 1989, by Summerhill 2 Development Limited Partnership, a Minnesota limited partnership (the "Declarant"), pursuant to the provisions of Minnesota Statutes Chapter 515A, known as the Uniform Condominium Act (referred to herein as the "Act"), and specifically pursuant to Section 515A.2-111 thereof.

WHEREAS, the Declaration of SummerHill Condominium (referred to herein as the "Declaration") has been filed in the office of the Hennepin County Recorder as Document No. 4711115, and a First Amendment to Declaration has been filed in said office as Document No. 4934519, and,

WHEREAS, the Declaration provides, in Article III, Section 2, for adding to the condominium the Additional Real Estate defined in the Declaration, and grants to Declarant the authority to add said property, all in accordance with the Act, and,

WHEREAS, Declarant is the assignee of all special declarant rights with respect to the condominium property by a Transfer of Special Declarant Rights filed as Document No. 5258165 in the office of the Hennepin County Recorder, and,

WHEREAS, Declarant desires to add to the Condominium that part of the Additional Real Estate legally described as follows:

> Lot 2, Block 1, Northwestern Financial Center 4th Addition, according to the plat thereof on file and of record in the office of the Hennepin County Recorder

as shown on the Second Supplemental Plat which is a part of this Amendment, which Additional Real Estate includes 26 additional Residential Units and 32 additional Garage Units, and their appurtenant Limited Common Elements as described herein, and,

WHEREAS, attached hereto as Exhibits C and D are Affidavits of Service, showing that notice of this Amendment has been given to the Association and the occupants of the condominium units, in compliance with Section 515A.2-111(b) of the Act.

NOW THEREFORE, the undersigned hereby enacts the following Amendment to the Declaration, in accordance with the requirements of the Declaration and the Act, for the purpose of subjecting the Additional Real Estate described above to the provisions of the Act as a part of SummerHill Condominium, hereby declaring that said Additional Real Estate shall be held, sold, conveyed and occupied subject to the covenants, restrictions, easements,

charges and liens provided for in the Declaration and this Amendment, all of which shall be binding upon all persons having or hereafter acquiring any right, title or interest therein, including their heirs, personal representatives, grantees, successors and assigns.

IDENTIFICATION OF UNITS

Article II, Section 1 of the Declaration shall be amended to read as follows:

"1. There are 174 Units in the condominium, consisting of 78 Residential Units and 96 Garage Units, each of which constitutes a separate parcel of real estate. The identifying numbers of the Units are set forth on Exhibit B, and the identifying numbers and location of the Units are as shown on the Condominium Plat and Supplemental Condominium Plats (formerly referred to as Floor Plans and Supplemental Floor Plans under the Act) which are a part of the Declaration and Amendments thereto."

REALLOCATION OF VOTING RIGHTS, COMMON EXPENSE OBLIGATIONS AND COMMON ELEMENT INTERESTS

Voting rights, Common Expense obligations and undivided interests in the Common Elements shall be reallocated among all Units created by the Declaration and the Amendments thereto in accordance with the formulas set forth in Article IV of the Declaration. The identifying number of each Unit created on the Additional Real Estate is set forth on Exhibit B attached hereto. Exhibit B to the Declaration, as amended, shall be amended and replaced by Exhibit B attached hereto. All references to Exhibit B in the Declaration, as amended, shall mean and refer to Exhibit B attached hereto.

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LEGAL DESCRIPTIONS

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mean and refer to Exhibit A attached hereto. Exhibit C to the Declaration, as amended, is cancelled in its entirety.

APPLICABILITY AND BINDING EFFECT

Except as specifically modified by this Amendment, the Declaration, as amended, shall remain in full force and effect, and all of the rights, benefits, restrictions and obligations conferred by the Declaration, as amended, shall apply to the Additional Real Estate added hereby and all Units created therein. Unless otherwise specifically set forth herein, all words and terms used in this Amendment shall have the same meaning set forth in the Declaration.

IN WITNESS WHEREOF, Declarant has executed this instrument the day and year first set forth above.

SUMMERHILL 2 DEVELOPMENT LIMITED PARTNERSHIP, a Minnesota limited partnership

By: Summerhill 2 Development Corporation, a General Partner

By: Peter M. Boosalis
PETER M. BOOSALIS
Its: President

STATE OF MINNESOTA)
Anoka) **SS**
COUNTY OF ~~HENNEPIN~~)

The foregoing instrument was acknowledged before me this 3 day of March, 1989, by Peter M. Boosalis the President of Summerhill 2 Development Corporation, a general partner of Summerhill 2 Development Limited Partnership, a Minnesota limited partnership, on behalf of the partnership.

James P. Akin
Notary Public

James P. Akin
Notary Public-Minnesota
Anoka County
My Comm. Exp 12-2-94

DRAFTED BY:

David B. Eide
FROMMELT & EIDE, LTD.
580 International Centre
900 Second Avenue South
Minneapolis, Minnesota 55402
(612) 332-2200

CONSENT OF MORTGAGEE

Midwest Federal Savings & Loan Association of Minneapolis, a corporation under the laws of the United States, the holder of an interest as security for an obligation (a mortgage) in the Additional Real Estate being added to SummerHill Condominium by this Second Amendment to Declaration, hereby consents to said Second Amendment to Declaration. As mortgagee of said Additional Real Estate, Midwest Federal Savings & Loan Association does not intent that the lien of its mortgage be extended to the previously existing condominium units which are not a part of said Additional Real Estate and which are not already subject to its mortgage.

MIDWEST FEDERAL SAVINGS & LOAN ASSOCIATION OF MINNEAPOLIS, a United States corporation

BY: Christopher H. Hanson

Title: VICE-PRESIDENT

BY: James J. Entzelmeier

Title: Vice President

STATE OF MINNESOTA)
) ss.
COUNTY OF Hennepin)

The foregoing instrument was acknowledged before me this 12th day of April, 1989, by Christopher H. Hanson and James J. Entzelmeier the Vice Presidents of Midwest Federal Savings & Loan Association of Minneapolis, a United States corporation, on behalf of the corporation.

Myrle J. Loos
Notary Public

MYRLE J. LOOS
NOTARY PUBLIC - MINNESOTA
HENNEPIN COUNTY
My Commission Expires June 6, 1991

1381J

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT A TO SECOND AMENDMENT TO DECLARATION

LEGAL DESCRIPTION OF PROPERTY

Lot 1, Block 1, Northwestern Financial Center 3rd Addition, and Lots 1 and 2, Block 1, Northwestern Financial Center 4th Addition, according to the plat thereof on file and of record in the office of the County Recorder, in and for Hennepin County, Minnesota.

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT B TO SECOND AMENDMENT TO DECLARATION

SCHEDULE OF UNITS AND ALLOCATION OF COMMON ELEMENT INTERESTS, VOTES AND COMMON EXPENSE LIABILITIES

RESIDENTIAL UNITS:

Unit Number	Allocation Expressed as a Percentage	Designated Storage Area
Building A 8007 Xerxes Avenue South		
A101	1.2540	AS1
A102	1.2540	AS2
A103	1.2796	AS7
A104	1.2540	AS4
A105	.9030	AS5
A106	.9030	AS6
A201	1.2540	AS3
A202	1.2540	AS8
A203	1.0730	AS9
A204	1.0730	AS10
A205	1.2540	AS11
A206	.9030	AS12
A207	.9030	AS13
Building B 8013 Xerxes Avenue South		
B101	1.2540	BS1
B102	1.2540	BS2
B103	1.2796	BS7
B104	1.2540	BS4
B105	.9030	BS5
B106	.9030	BS6
B201	1.2540	BS3
B202	1.2540	BS8
B203	1.0730	BS9
B204	1.0730	BS10
B205	1.2540	BS11
B206	.9030	BS12
B207	.9030	BS13

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT B TO SECOND AMENDMENT TO DECLARATION (Continued)

SCHEDULE OF UNITS AND ALLOCATION OF COMMON ELEMENT INTERESTS, VOTES AND COMMON EXPENSE LIABILITIES

RESIDENTIAL UNITS (continued):

Unit Number	Allocation Expressed as a Percentage	Designated Storage Area
Building C 8019 Xerxes Avenue South		
101	1.3010	CS6
102	1.2430	CS8
103	1.2540	CS7
104	1.2430	CS4
105	.9470	CS13
106	.9470	CS5
201	1.3010	CS10
202	1.2430	CS3
203	1.2796	CS9
204	1.2796	CS2
205	1.2430	CS12
206	.9470	CS1
207	.9470	CS11
Building D 8025 Xerxes Avenue South		
111	1.3010	DS6
112	1.2430	DS8
113	1.2540	DS7
114	1.2430	DS4
115	.9470	DS11
116	.9470	DS5
211	1.3010	DS10
212	1.2430	DS3
213	1.2796	DS9
214	1.2796	DS12
215	1.2430	DS1
216	.9470	DS14
217	.9470	DS2

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT B TO SECOND AMENDMENT TO DECLARATION (Continued)

SCHEDULE OF UNITS AND ALLOCATION OF COMMON ELEMENT INTERESTS, VOTES AND COMMON EXPENSE LIABILITIES

RESIDENTIAL UNITS (continued):

Unit Number	Allocation Expressed as a Percentage	Designated Storage Area
Building E 8031 Xerxes Avenue South		
121	1.3010	ES6
122	1.2430	ES8
123	1.2540	ES7
124	1.2430	ES4
125	.9470	ES11
126	.9470	ES5
221	1.3010	ES10
222	1.2430	ES3
223	1.2796	ES9
224	1.2796	ES12
225	1.2430	ES1
226	.9470	ES14
227	.9470	ES2
Building F 8037 Xerxes Avenue South		
131	1.3010	FS6
132	1.2430	FS8
133	1.2540	FS7
134	1.2430	FS4
135	.9470	FS13
136	.9470	FS5
231	1.3010	FS10
232	1.2430	FS3
233	1.2796	FS9
234	1.2796	FS2
235	1.2430	FS12
236	.9470	FS1
237	.9470	FS11

KEY: A letter preceding the Unit Number or storage Area designates the Building in which it is located.

GARAGE UNITS:

There are sixteen (16) Garage Units in each Building (Buildings A, B, C, D, E and F), for a total of 96 Garage Units. Garage Units in each Building are numbered with the numerals 1 through 16 preceded by the letter G and the letter identifying the Building.

1. Each Garage Unit in Buildings A and B is approximately 120 square feet in area, and the percentage allocation of Common Element Interests, Votes and Common Expense Liabilities is .154%.

2. Each Garage Unit in Buildings C, D, E and F is approximately 80 square feet in area, and the percentage allocation of Common Element Interests, Votes and Common Expense Liabilities is .082%.

Total -	**Residential Units**	89.824%
Total -	**Garage Units**	10.176%
Total -	**All Units**	100.000%

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT C TO SECOND AMENDMENT TO DECLARATION

AFFIDAVIT OF SERVICE ON ASSOCIATION

STATE OF MINNESOTA)
) SS
COUNTY OF Anoka)

Peter M. Boosalis, of the City of Edina, County of Hennepin, in the State of Minnesota, being duly sworn, on oath says: that on the 3rd day of March, 198 9, he/~~she~~ served a Notice of Intention to Add Additional Real Estate, containing the information required by Section 515A.2-111(b)(1) of the Uniform Condominium Act, upon SummerHill Condominium Association, Inc. therein named, personally at 8025 Xerxes Avenue So., #212, City of Bloomington, County of Hennepin, State of Minnesota, by handing to and leaving with Warren Winterfeldt, an officer of said corporation duly authorized to accept service, a true and correct copy thereof, pursuant to the requirements of the aforementioned statute.

Peter M. Boosalis

Subscribed and sworn to before me this 3rd day of March, 198 9.

Notary Public

James P. Akin
Notary Public-Minnesota
Anoka County
My Comm. Exp. 12-3-94

CONDOMINIUM NUMBER 275
SUMMERHILL CONDOMINIUM

EXHIBIT D TO SECOND AMENDMENT TO DECLARATION

AFFIDAVIT OF SERVICE ON OCCUPANTS

STATE OF MINNESOTA)
) SS
COUNTY OF Anoka)

Peter M. Bonsalis of the City of Edina, County of Hennepin in the State of Minnesota, being duly sworn, says that on the 3rd day of March, 1989, he/~~she~~ served a Notice of Intention to Add Additional Real Estate, containing the information required by Section 515A.2-111(b)(2) of the Uniform Condominium Act, on the occupants of each Unit in SummerHill Condominium as of the 3rd day of March, 1989, by mailing to them a true copy thereof, enclosed in an envelope, postage prepaid, and by depositing same in the post office at St. Louis Park, Minnesota directed to Occupant Entitled to Legal Notice at the addresses of the respective condominium Units occupied by them, pursuant to the requirements of the aforementioned statute.

Peter M. Bonsalis

Subscribed and sworn to before me this 3rd day of March, 1989.

Notary Public

James P. Akin
Notary Public-Minnesota
Anoka County
My Comm. Exp. 10-2-94

FILE NO. 1 OFFICIAL PLAT

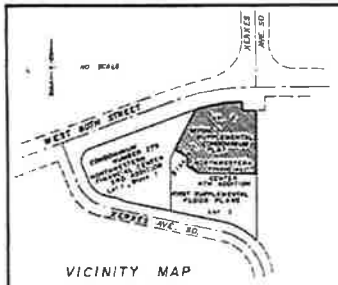
CONDOMINIUM NUMBER 275

SummerHill Condominium

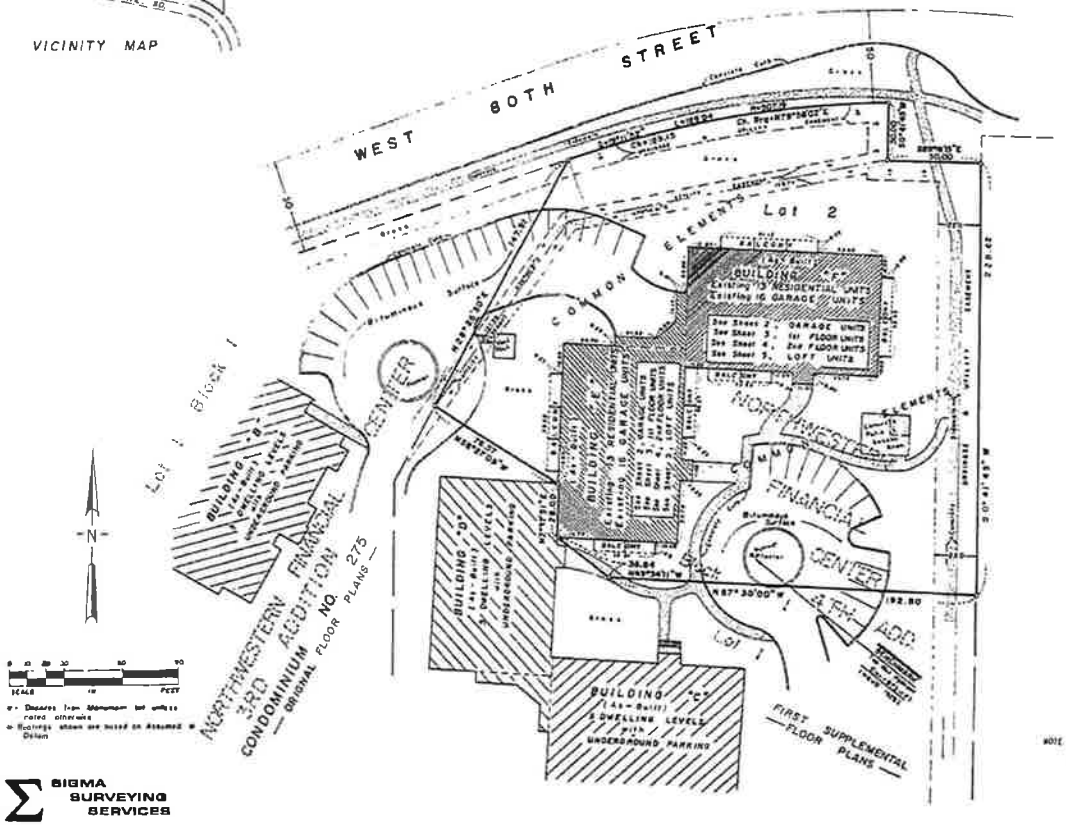
SECOND SUPPLEMENTAL CONDOMINIUM PLAT

SITE PLAN

THIS SECOND SUPPLEMENTAL CONDOMINIUM PLAT HAS BEEN RECORDED AS PART OF THE DECLARATION FILED AS DOCUMENT NO. 5524401 ON THE 13th DAY OF APRIL A.D., 1989.
HENNEPIN COUNTY RECORDER



VICINITY MAP



FILE NO. 141

The undersigned, being first duly sworn under oath, certifies and deposes that this SECOND SUPPLEMENTAL CONDOMINIUM PLAT of CONDOMINIUM NUMBER 275, SummerHill Condominium, being located on the following described lands

Lot 2, Block 1, NORTHWESTERN FINANCIAL CENTER 4TH ADDITION, according to the ld the recorded plat thereof, Hennepin County, Minnesota

and that this Condominium Plat fully and accurately depicts all information required by Minnesota Statutes Section 515A.2-110

Dated this 6th day of April 1989

Wayne D. Cordes
Registered Professional Land Surveyor
Minnesota Registration No. 14615

STATE OF MINNESOTA)
) ss
COUNTY OF Scott)

The foregoing instrument was acknowledged before me this 6th day of April 1989 by Wayne D. Cordes, a Registered Professional Land Surveyor

BRENDA K. ANDERSON
NOTARY PUBLIC-MINNESOTA
SCOTT COUNTY
My Comm. Expires Dec. 19, 1991

Brenda K. Anderson
Notary Public, Scott County, Minnesota
My Commission Expires 12-19-91

James Hanson, a Registered Professional Architect for the State of Minnesota pursuant to Minnesota Statutes Section 515.2-110(b) does hereby certify that all structural and mechanical systems serving more than one unit of all buildings containing or comprising any units hereby created are substantially completed consistent with the SECOND SUPPLEMENTAL CONDOMINIUM PLAT of CONDOMINIUM NUMBER 275 SummerHill Condominium

Dated this 7th day of APRIL, 1989

James Hanson
Registered Professional Architect
Minnesota Registration No. 6855

STATE OF MINNESOTA)
) ss
COUNTY OF Hennepin)

The foregoing instrument was acknowledged before me this 7th day of April 1989 by James Hanson, a Registered Professional Architect

Patricia Schwebach
Notary Public, Hennepin County, Minnesota

My Commission Expires 7-20-91

PATRICIA SCHWEBACH
NOTARY PUBLIC-MINNESOTA
HENNEPIN COUNTY
My Commission Expires July 20, 1991

NOTE: Easements shown hereon are per plat of NORTHWESTERN FINACIAL CENTER 4TH ADDITION

SIGMA SURVEYING SERVICES

36X

FILE NO. 141 OFFICIAL PLAT

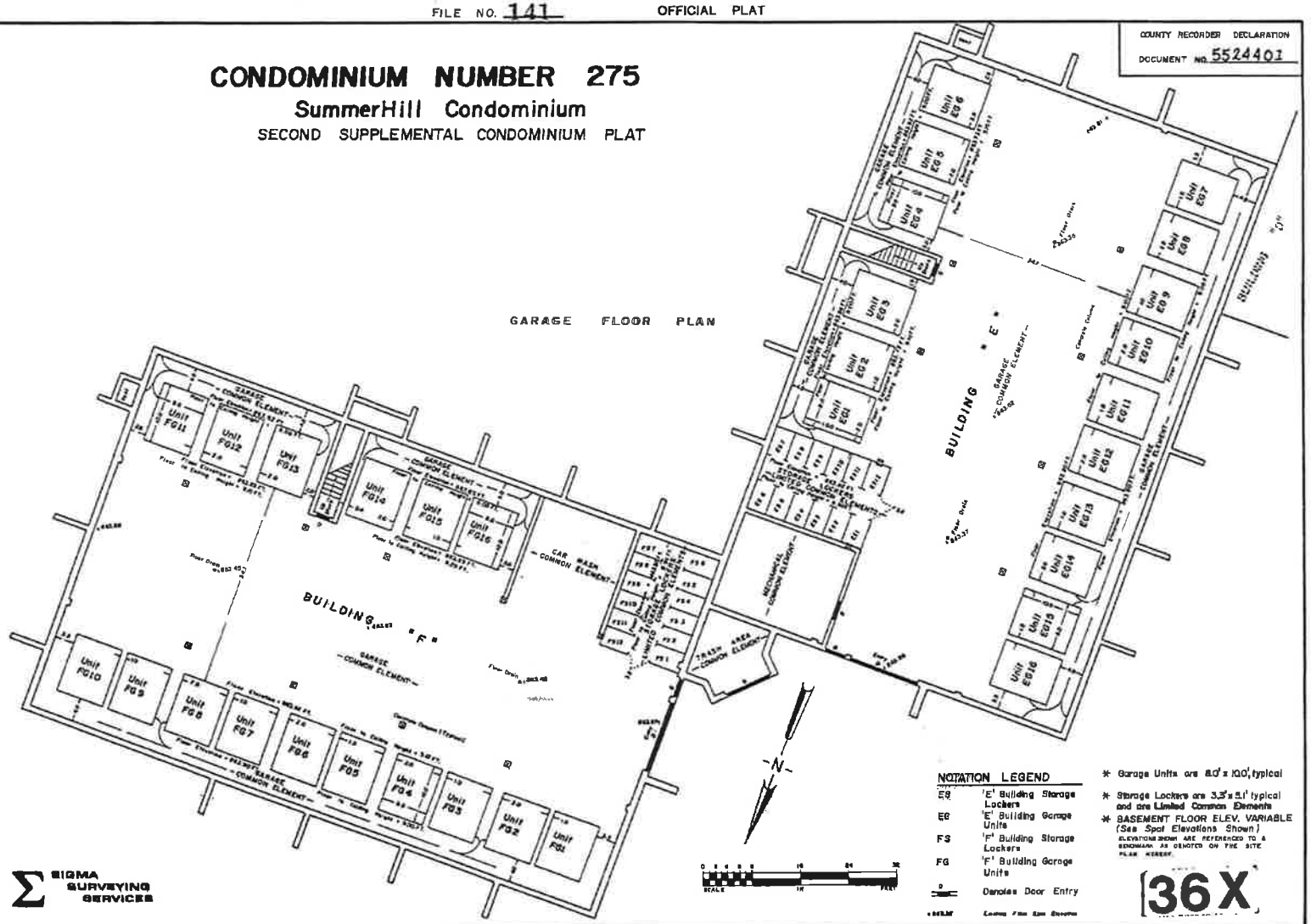
COUNTY RECORDER DECLARATION
DOCUMENT NO. 5524401

CONDOMINIUM NUMBER 275

SummerHill Condominium

SECOND SUPPLEMENTAL CONDOMINIUM PLAT

GARAGE FLOOR PLAN



NOTATION LEGEND

EG	'E' Building Storage Lockers
EG	'E' Building Garage Units
FS	'F' Building Storage Lockers
FG	'F' Building Garage Units
	Denotes Door Entry

* Garage Units are 8.0' x 19.0', typical
* Storage Lockers are 3.3' x 5.1' typical and are Limited Common Elements
* BASEMENT FLOOR ELEV. VARIABLE (See Spot Elevations Shown)
ELEVATIONS SHOWN ARE REFERENCED TO A BENCHMARK AS DENOTED ON THE SITE PLAN HEREOF.

SIGMA SURVEYING SERVICES

36X

FILE NO. 141

SHEET 2 OF 5 SHEETS

FILE NO. 141 OFFICIAL PLAT

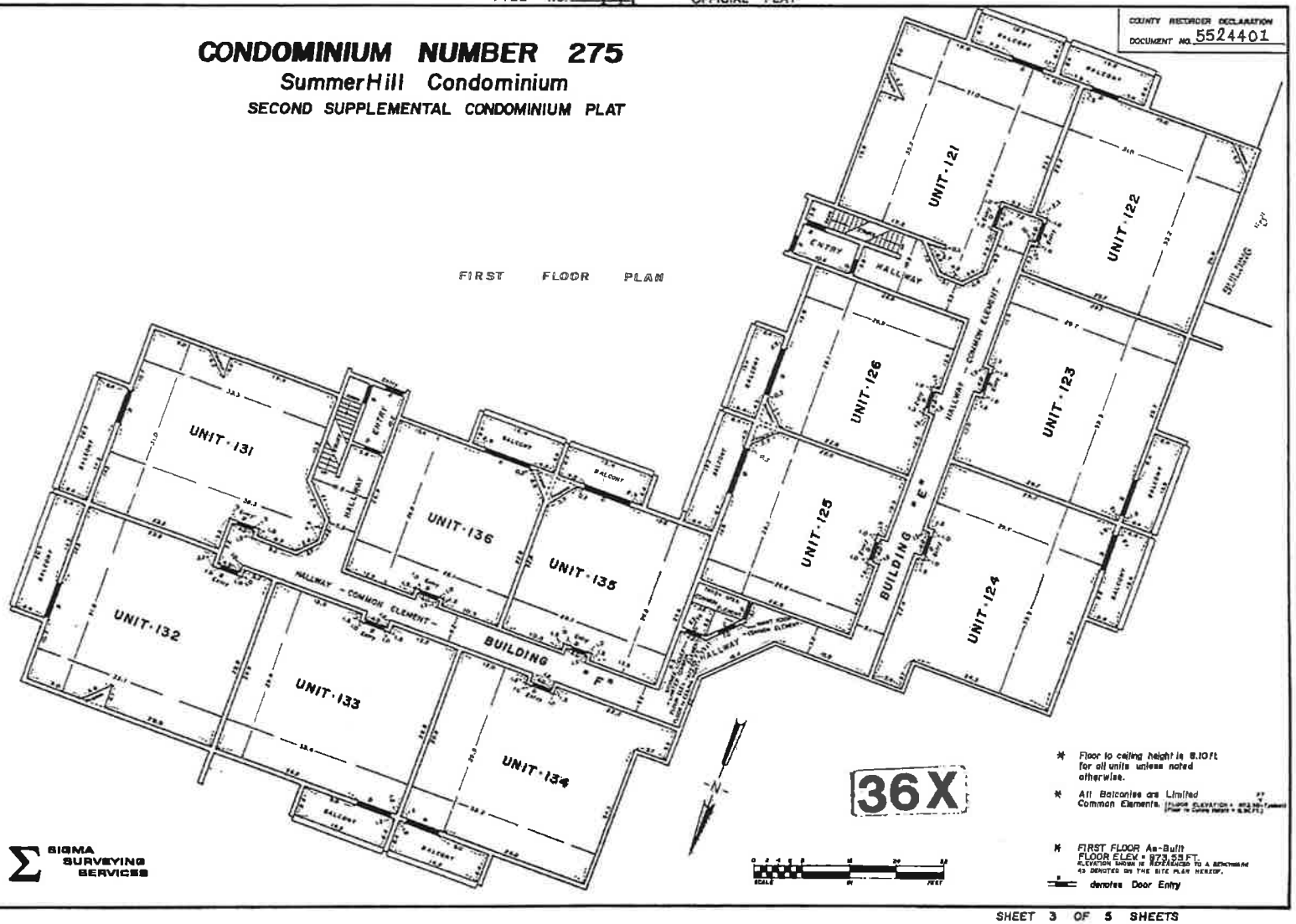
COUNTY RECORDER DECLARATION
DOCUMENT NO. 5524401

CONDOMINIUM NUMBER 275

SummerHill Condominium

SECOND SUPPLEMENTAL CONDOMINIUM PLAT

FIRST FLOOR PLAN



* Floor to ceiling height is 8.10 ft for all units unless noted otherwise.

* All Balconies are Limited Common Elements.

* FIRST FLOOR As-Built FLOOR ELEV = 873.53 FT. ELEVATION SHOWN IS REFERENCED TO A BENCHMARK AS DENOTED ON THE SITE PLAN HEREOF.

denotes Door Entry

SIGMA SURVEYING SERVICES

FILE NO. 141

SHEET 3 OF 5 SHEETS

OFFICIAL PLAT

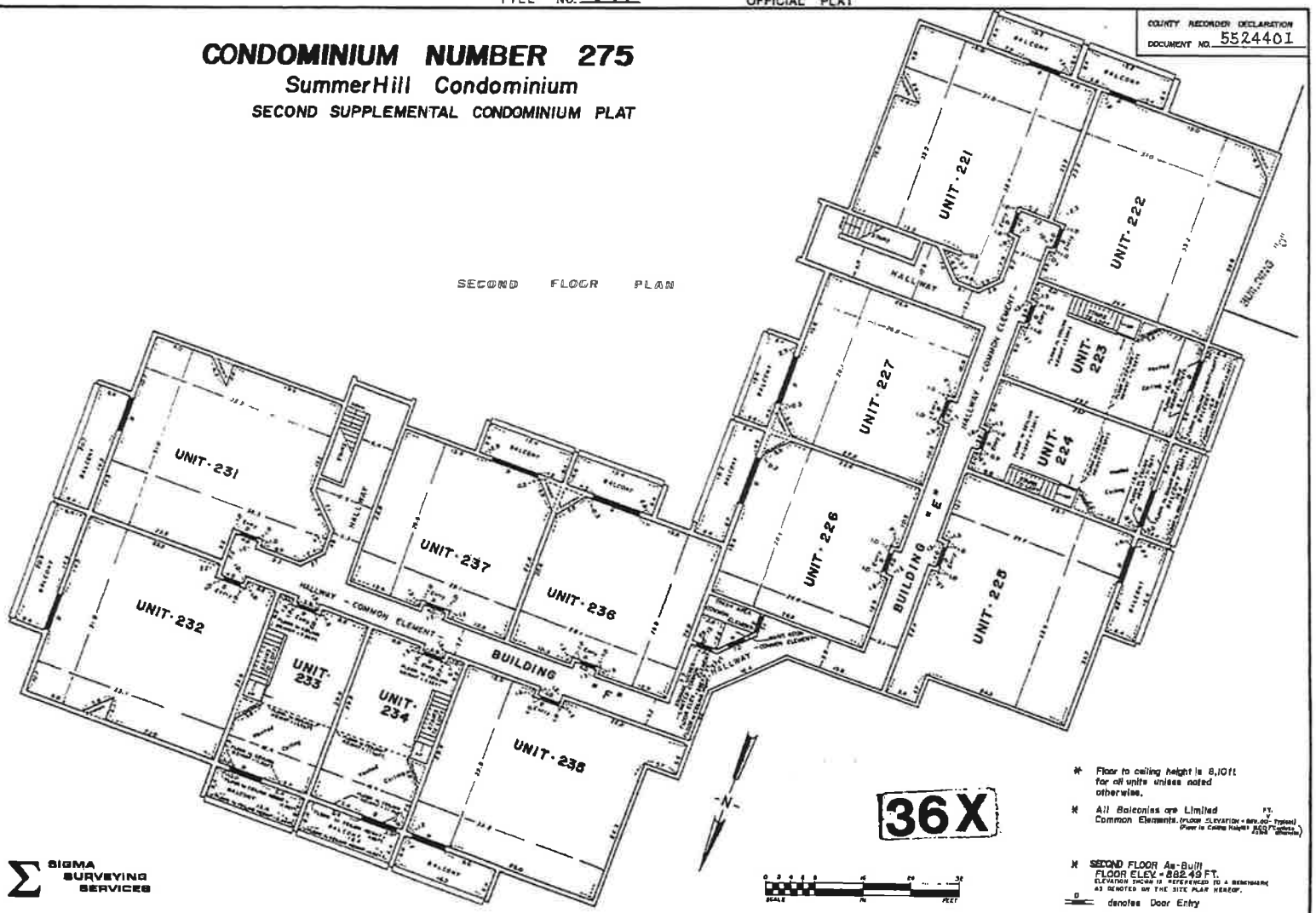
COUNTY RECORDER DECLARATION
DOCUMENT NO. 5524401

CONDOMINIUM NUMBER 275

SummerHill Condominium

SECOND SUPPLEMENTAL CONDOMINIUM PLAT

SECOND FLOOR PLAN



* Floor to ceiling height is 8.10 ft for all units unless noted otherwise.

* All Balconies are Limited Common Elements. (FLOOR ELEVATION = 889.00 FT. (Typical) Floor to Ceiling Height 8.10 FT. unless otherwise)

* SECOND FLOOR As-Built FLOOR ELEV. = 882.40 FT. ELEVATION SHOWN IS REFERENCED TO A BENCHMARK AS DENOTED ON THE SITE PLAN HEREOF.

D denotes Door Entry

SCALE IN FEET

SIGMA SURVEYING SERVICES

FILE NO. 141

FILE NO. 141 OFFICIAL PLAT

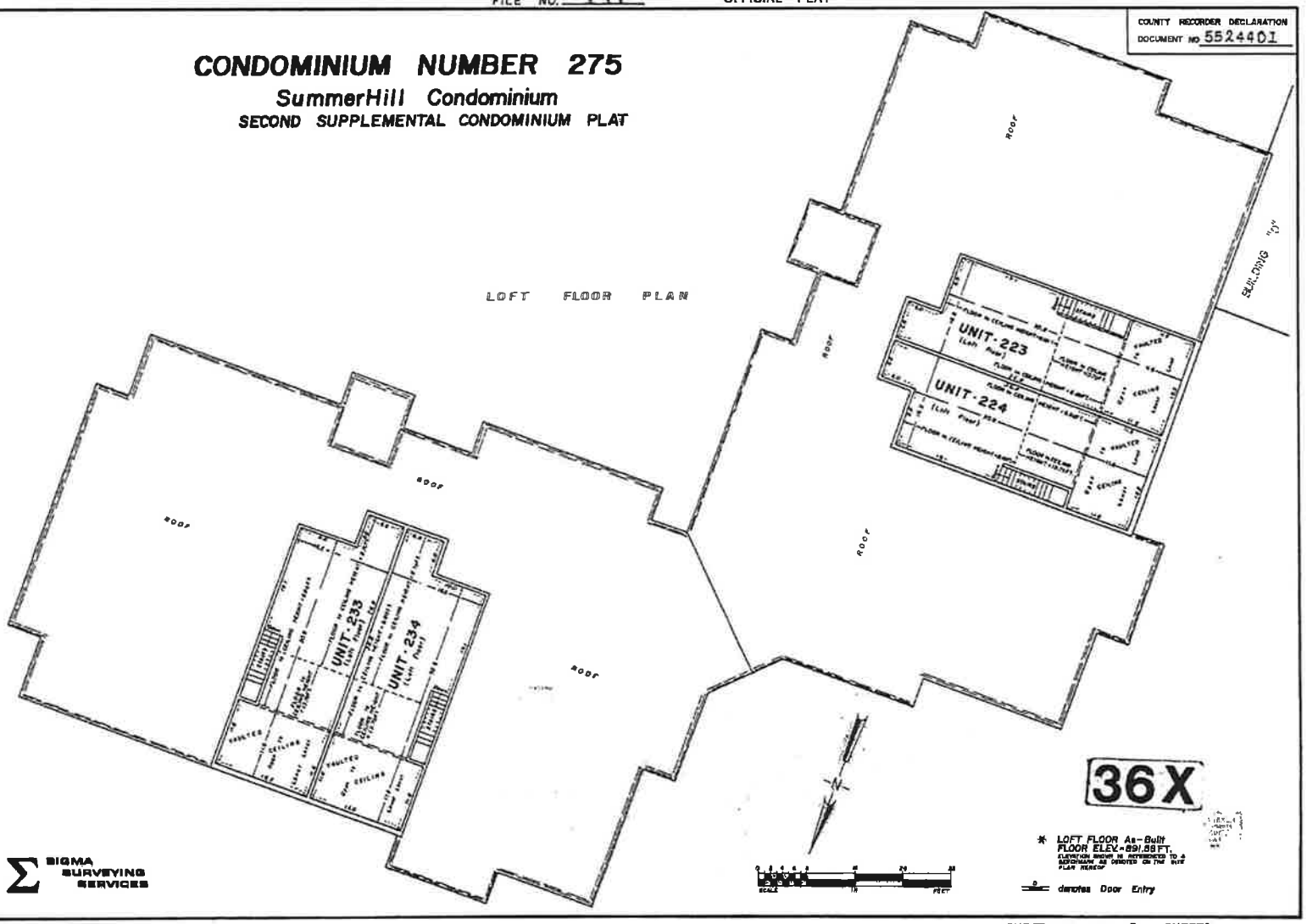
COUNTY RECORDER DECLARATION
DOCUMENT NO. 5524401

CONDOMINIUM NUMBER 275

SummerHill Condominium

SECOND SUPPLEMENTAL CONDOMINIUM PLAT

LOFT FLOOR PLAN



36X

* LOFT FLOOR As-Built FLOOR ELEV.=891.66 FT.
ELEVATION SHOWN IS REFERENCED TO A BENCHMARK AS DENOTED ON THE SITE PLAN HEREOF

denotes Door Entry

SIGMA SURVEYING SERVICES

FILE NO. 141

SHEET 5 OF 5 SHEETS

5C.

5524401

13APR8915:32 C5524401 DOC $41.00

OFFICE OF COUNTY RECORDER
HENNEPIN COUNTY, MINNESOTA

CERTIFIED FILED AND OR
RECORDED ON

89 APR 13 PM 3: 32

AS DOCUMENT A 5524401

R. Dan Carlson CO. RECORDER

M. Kruse DEPUTY

Rec 1 $11.00
Plat 30.00
41.00

Box 491

STATE OF MINNESOTA, COUNTY OF HENNEPIN
Certified to be a true and correct copy of the original on file and of record in my office

JAN 04 2012

MARTIN MCCORMICK, ACTING
COUNTY RECORDER/REGISTRAR OF TITLES
By N. Dindial .Deputy

COUNTY RECORDER
L'ETOILE DU NORD
HENNEPIN COUNTY, MINN.